

Court No. - 3

Case :- WRIT - C No. - 18341 of 2022

Petitioner :- Nagendra Urf Bablu

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prem Shanker Mishra, Chandra
Bhushan Mishra

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Shri N.K. Tiwari, learned counsel appearing for the respondent no.2, Executive Engineer, prays for and is granted two weeks' time to obtain instructions in the matter..

Put up as a fresh case before the appropriate Bench on 21.07.2022.

Order Date :- 6.7.2022

SK

Court No. - 29

Case :- WRIT - C No. - 18341 of 2022

Petitioner :- Nagendra Urf Bablu

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prem Shanker Mishra, Chandra
Bhushan Mishra

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

At the request of learned counsel for the petitioner, list this case
in the week commencing 08.08.2022 as fresh.

Order Date :- 28.7.2022

SK

(Ashutosh Srivastava, J.) (Pritinker Diwaker, J.)

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Narendra Kumar Tiwari, learned counsel for the respondent no. 2.

2. This writ petition has been filed praying for the following reliefs :

"1- यह कि सम्माननीय न्यायालय उत्प्रेषण प्रकृति के याचिकादेश , आदेश/निर्देश के माध्यम से अधिशाषी अभियन्ता (नियम प्राधिकारी) पूर्वांचल विद्युत वितरण निगम लिमिटेड, विद्युत वितरण खण्ड-प्रथम, फतेहपुर द्वारा निर्गत/जारी नोटिस संख्या 7177 दिनांकित 18.12.2021 समेत आर०सी० नम्बर 20220101172000120 दिनांकित 18.12.2021 निरस्त करने की महती कृपा करें।

2- यह कि सम्माननीय न्यायालय वर्तमान याचिका के लम्बन अवधि अवधि तक अंतरिम परमादेश प्रकृति के याचिकादेश आदेश /निर्देश के माध्यम से अधिशाषी अभियन्ता (नियम प्राधिकारी) पूर्वांचल विद्युत वितरण निगम लिमिटेड, विद्युत वितरण खण्ड-प्रथम, फतेहपुर द्वारा निर्गत/जारी नोटिस संख्या 7177 दिनांकित 18.12.2021 समेत आर०सी० नम्बर 20220101172000120 दिनांकित 18.12.2021 का क्रियान्वयन एवं प्रभाव स्थगित करने की महती कृपा करें।"

3. Learned counsel for the respondent no. 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within

next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 8.8.2022

A. V. Singh